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PRIVACY POLICY

Data Protection & User Rights

Field	Detail
Document Version	2.0 (aligned to the Data Protection Act, 2024)
Effective Date	13 September 2026 — supersedes Version 1.0, 01 April 2026
Company	Vero360 Limited
Registration	MBRS Registered — Malawi (COY-J7RCG5G)
Registered Office	Area 14, Lilongwe, Malawi
Contact	info@vero360.app
Platform	Vero360 Super App (Android & iOS)
Status	OFFICIAL PRIVACY POLICY — LEGALLY BINDING

Legal Basis: This Privacy Policy is issued under Section 21 of the Constitution of the Republic of Malawi (Right to Privacy) and the **Data Protection Act, 2024 (Act No. 3 of 2024)**, which came into force on 3 June 2024 and is Malawi's primary data protection law. The Data Protection Act 2024 designates the **Malawi Communications Regulatory Authority (MACRA)** as the Data Protection Authority; **MACRA** currently hosts and operationally supports the Malawi Data Protection Authority during its stand-up phase (together, 'the Authority'). Matters of electronic transactions and cybersecurity not covered by the Data Protection Act remain governed by the **Electronic Transactions and Cyber Security Act** 2016. By using the **Vero360** Super App, you acknowledge the data practices described in this Policy.

PART A — WHO WE ARE & WHAT THIS POLICY COVERS

1. About Vero360 & This Policy

Vero360 Limited ('**Vero360**', 'we', 'us', 'our') is a technology company incorporated under the Companies Act 2013 of Malawi and registered with **MBRS**. We operate the **Vero360** Super App — a mobile platform connecting customers with verified service providers, merchants, and courier partners across Malawi. This Privacy Policy explains what personal data we collect, why we collect it, how we use it, who we share it with, and what your rights are. It applies to all users of the **Vero360** Super App platform, website, and related services.

2. Regulatory Framework

Law / Regulation	Authority	Key Privacy Provision
Constitution of Malawi — Section 21	Republic of Malawi	Fundamental right to privacy of person, home, and communications
Data Protection Act, 2024 (Act No. 3 of 2024)	MACRA (Data Protection Authority)	Primary data protection law — lawful processing, data subject rights, breach notification, cross-border transfer

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Law / Regulation	Authority	Key Privacy Provision
Electronic Transactions & Cyber Security Act 2016	MACRA	Electronic transactions, cybersecurity, and matters not covered by the Data Protection Act
Financial Crimes Act 2017 (AML)	RBM / Financial Intelligence Authority	KYC data obligations and anti-money-laundering record-keeping
Financial Services Act 2010	Reserve Bank of Malawi (RBM)	Protection of financial and payment data of platform users
Taxation Act (Cap. 41:01)	Malawi Revenue Authority (MRA)	Retention of financial transaction records for 7 years
Consumer Protection Act 2003	Government of Malawi	Consumer right to know how their data is used and to seek redress

PART B — DATA WE COLLECT

3. What Personal Data We Collect

Data Category	Specific Data Collected	Who It Applies To	Legal Basis
Identity Data	Full name, phone number, email address, date of birth	All users	Contract performance; Legal obligation
KYC / ID Data	National ID number, NID photo, selfie for liveness check	Providers only	Legal obligation (AML); Contract performance
Payment Data	Mobile money number, transaction history, escrow and wallet records	All users	Contract performance; Legal obligation (MRA)
Location Data	GPS coordinates during active rides and deliveries only	Customers & drivers	Contract performance; Legitimate interest
Device Data	Device model, OS version, app version, IP address	All users	Legitimate interest (security)
Usage Data	Pages visited, features used, session duration (anonymised)	All users	Legitimate interest (improvement)
Communications	In-app chat messages, support tickets, dispute evidence	All users	Contract performance; Legal obligation
Ratings & Reviews	Star ratings and written reviews submitted by users	All users	Legitimate interest; Consent

Data Minimisation: **Vero360** collects only the minimum personal data necessary to provide platform services, in line with the data minimisation principle in Section 10 of the **Data Protection Act, 2024**. We do not collect

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sensitive personal data (biometric data, race or ethnic origin, religious belief, health status, or political opinion) unless strictly required by law.

4. Location Data

Vero360 accesses location data on your device only where you have granted location permission. We use location data to:

- match passengers with nearby drivers and track trips in progress for Vero Ride and Vero Bike;
- support courier and parcel pickup and delivery, in-app maps, and nearby marketplace, food, and accommodation listings; and
- improve safety and service quality during an active trip, including foreground location updates while a trip or delivery is in progress.

Vero360 only accesses location data in the foreground, while the App is open and in active use for a trip, delivery, or nearby-listings search. **Vero360** does not access or collect location data in the background when the App is closed or not in active use.

Location access is requested through your device's own permission prompts. You may deny or revoke location permission at any time through your device settings; where you do so, some features (such as ride matching, live trip tracking, and nearby-listings search) may not work fully or at all. We do not sell your location data, and it is retained only for **90 days** after trip completion, as set out in Section 10 (Data Retention Periods).

5. How We Collect Your Data

- Direct collection — data you provide when registering, booking, or contacting support
- **Firebase OTP verification** — phone number confirmed at registration and login
- **KYC** submission — **NID** photo and documents submitted by providers during onboarding
- **PawaPay** gateway — payment transaction data processed through the payment gateway
- **Google Maps Platform** — GPS location data during active rides and deliveries only
- App usage analytics — anonymised usage data collected through the app
- In-app chat — messages exchanged between customers and providers on the platform

PART C — HOW WE USE YOUR DATA & OUR LAWFUL BASIS

6. Lawful Bases for Processing

Section 8 of the **Data Protection Act, 2024** sets out the lawful bases on which personal data may be processed. **Vero360** relies on the following bases, and no others:

Lawful Basis	When Vero360 Relies On It
Consent	Marketing communications; optional profiling for AI recommendations; processing of any sensitive data narrowly required by law
Contract performance	Account creation, order and booking fulfilment, payment, escrow and wallet processing, customer support

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Lawful Basis	When Vero360 Relies On It
Legal obligation	KYC/AML checks, tax reporting to MRA, responding to lawful requests from the Authority or courts
Vital interests	Protecting the life or safety of a user or another person in an emergency
Public interest / official authority	Cooperating with MACRA, RBM, MRA, or the Data Protection Authority in the exercise of their legal mandate
Legitimate interest	Fraud detection, platform security, service improvement — always balanced against your rights and freedoms

7. Purposes of Data Processing

Purpose	Data Used	Lawful Basis
Account creation & management	Identity data, phone number	Contract performance
Identity verification (KYC)	NID data, Firebase OTP	Legal obligation (AML)
Payment processing, wallet & escrow	Payment data, transaction records	Contract; Legal obligation
Service delivery coordination	Location, booking, identity data	Contract performance
AI-powered service discovery	Usage data, search history (anonymised)	Legitimate interest; Consent
Fraud detection & prevention	Transaction patterns, device data, location	Legitimate interest; Legal obligation
Dispute resolution	Communications, transaction records, evidence	Contract; Legal obligation
Regulatory compliance	KYC, transaction, identity data	Legal obligation
Platform improvement	Anonymised usage analytics	Legitimate interest
Marketing & promotions	Name, contact details (opted-in users only)	Consent — withdrawable anytime
Tax reporting to MRA	Transaction records, provider earnings	Legal obligation

No Data Selling: **Vero360** will never sell, rent, or trade your personal data to any third party for commercial purposes. This is an absolute and unconditional commitment.

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8. Data Sharing

We share personal data only in the following limited circumstances:

Recipient	Data Shared	Reason	Safeguard
PawaPay	Payment data, mobile number	Payment processing and wallet payouts	Contractual data processing agreement
Google Firebase	Phone number, device data	OTP, push notifications, authentication	Google's security standards
OpenAI (AI assistant)	Anonymised query data only	AI assistant responses	No personal identifiers shared
Google Maps	GPS location during active trips	Route & fare calculation	Location shared only during active service
Courier Partners	Delivery address, contact number	Order fulfilment	Signed data-sharing agreement required
Data Protection Authority / MACRA / RBM	KYC and suspicious transaction data	AML legal obligation	Only when legally required
MRA	Provider earnings, transaction records	Tax compliance	Only when legally required
Malawi Police Service	Account and transaction data	Court order or fraud investigation	Only with valid legal authority

9. Cross-Border Data Transfer

Some of our service providers (including **PawaPay**'s underlying infrastructure, Google Firebase, Google Maps, and OpenAI) may process personal data outside Malawi. In accordance with Sections 38 to 40 of the **Data Protection Act, 2024**, **Vero360** transfers personal data outside Malawi only where the recipient is subject to a law, binding corporate rule, contractual clause, code of conduct, or certification mechanism that affords an adequate level of data protection, or where a specific condition under Section 39(4) of the Act applies (for example, the transfer is necessary to perform a contract with the data subject). **Vero360** keeps a record of the legal basis for each cross-border transfer, as required by Section 38(2) of the Act.

PART D — RETENTION, SECURITY & YOUR RIGHTS

10. Data Retention Periods

In accordance with the storage limitation principle in Section 12 of the **Data Protection Act, 2024**, **Vero360** does not retain personal data for longer than necessary to achieve the purpose for which it was collected. The single retention schedule below is the authoritative reference for all **Vero360** policies and supersedes any other retention period referenced elsewhere.

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Data Type	Retention Period	Legal Basis for Retention
Transaction & payment records	7 years	Taxation Act (Cap. 41:01) — MRA requirement
KYC / NID verification data	7 years after account closure	Financial Crimes Act 2017 — AML requirement
Account & identity data	Duration of account + 3 years	Contract; Consumer Protection Act 2003
In-app chat messages	2 years	Dispute resolution — Consumer Protection Act
Dispute records	5 years	Legal proceedings protection
GPS / location data	90 days after trip completion	Storage limitation — Data Protection Act s.12
Device & usage analytics	12 months (anonymised)	Legitimate interest — platform improvement
Marketing consent records	Until consent withdrawn + 1 year	Data Protection Act s.14 — consent record-keeping

11. Data Security Measures

In accordance with Section 35 of the **Data Protection Act, 2024**, **Vero360** implements the following technical and organisational measures to secure personal data:

- Pseudonymisation and de-identification of personal data where appropriate
- End-to-end encryption on all payment data via **PawaPay** secure infrastructure
- Firebase Authentication with SMS OTP — no passwords stored in plain text
- Documented procedures to restore availability and access to data after an incident
- Periodic risk assessment of data processing systems and services
- Regular testing, assessment, and evaluation of security measures against evolving risks
- Regular updates to security measures to address identified shortcomings
- Access controls — only authorised **Vero360** staff can access personal data

Breach Notification: **Vero360** will notify the Data Protection Authority within **72 hours** of becoming aware of a personal data breach, as required by Section 36 of the **Data Protection Act, 2024**. Where a breach is likely to be of high risk to the rights and freedoms of affected users, **Vero360** will also notify those users within **72 hours**, as required by Section 37 of the Act.

12. Your Data Rights

Under Part IV of the **Data Protection Act, 2024**, you have the following rights. These timelines are the single authoritative reference for how **Vero360** responds to each type of request:

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Right	What It Means	Vero360's Timeline	How to Exercise
Right of Access (s.19)	Confirm whether we process your data and receive a copy	30 days, free of charge, electronic format	Email info@vero360.app — Subject: DATA ACCESS
Right to Data Portability (s.20)	Receive your data in a structured, machine-readable format	30 days	Email info@vero360.app — Subject: DATA PORT
Right to Rectification (s.21)	Correct inaccurate or incomplete data	14 days	Update in-app or email — Subject: RECTIFY
Right to Erasure (s.22)	Request deletion of personal data (subject to legal retention obligations)	Without undue delay	Email info@vero360.app — Subject: DATA DELETE
Right to Restriction (s.23)	Limit how we process your data while accuracy is contested	Actioned promptly, or written reason given	Email info@vero360.app — Subject: RESTRICT
Right to Object (s.24)	Object to processing based on legitimate interest, or to direct marketing	Processing stops unless we show a compelling ground	Email info@vero360.app — Subject: OBJECT
Right re: Automated Decisions (s.25)	Not to be subject to a decision based solely on automated processing with legal or similarly significant effect	Safeguards applied on request	Email info@vero360.app — Subject: AUTOMATED DECISION

Derogations: These rights may be restricted where processing is necessary for national security, crime prevention or prosecution, taxation, public health, judicial proceedings, or other grounds listed in Section 26 of the **Data Protection Act, 2024**. Where a restriction applies, we will tell you which ground we are relying on.

13. Children's Privacy

The **Vero360** platform is intended for users aged 18 and above, consistent with the definition of a 'child' as a person below 18 years under Section 2 of the **Data Protection Act, 2024**. We do not knowingly collect personal data from children under 18 and do not obtain guardian consent for processing, because the platform is not designed for use by children. If we become aware that a child has registered on the platform, the account will be immediately suspended and the data deleted.

14. Complaints & Enforcement

Stage	Action	Timeline
1. Internal complaint	Raise your concern directly with Vero360 at info@vero360.app — Subject: PRIVACY COMPLAINT	Acknowledged within 5 business days

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Stage	Action	Timeline
2. Authority complaint	If unresolved, lodge a written complaint with the Data Protection Authority (MACRA / dpa.mw) under Section 44 of the Data Protection Act, 2024	Must be lodged within 90 days of the act or omission
3. Compliance order	The Authority may investigate and issue a compliance order against Vero360 under Section 45 of the Act	Per Authority process
4. Appeal / civil remedy	Either party may seek High Court review of an Authority decision, or a data subject may pursue a civil remedy directly	Appeal within 30 days of the decision (s.46); civil remedy available independently (s.47)

15. Governing Law & Contact

This Privacy Policy is governed by the laws of the Republic of Malawi, principally the **Data Protection Act, 2024** and Section 21 of the Constitution. For all privacy-related enquiries, requests, or complaints, contact us at:

Contact Type	Details
Privacy enquiries	info@vero360.app — Subject: PRIVACY
Data access / portability / rectification / erasure requests	info@vero360.app — Subject line as shown in Section 12 above
Complaints (after contacting Vero360 first)	Malawi Data Protection Authority — dpa.mw

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